

District- Pirojpur

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. of 2024

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Siraj Chowdhury

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Ms. Umme Salma, Advocate

.... For the accused-Petitioner.

Mr. Noor Us Sadik Chowdhury, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 21st March 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

In this case under Sections
143/341/323/324/326/307/302/506(ii)/34 of the Penal Code,

1860 the victim, namely Md. Shahidul Islam disclosed the names of his assailants by making a dying declaration and the name of the petitioner was included in above dying declaration.

On consideration of above materials on record we are not inclined to grant bail to the petitioner at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Session Judge, Pirojpur to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

The days covered by the adjournment at the instance of the accused be excluded from above period.

But if the learned Judge fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded.

The learned Judge shall also consider the petition for bail if any filed by the petitioner with sympathy and in accordance with law.

The Superintendent of Police, Pirojpur is directed to ensure that the prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

The Public Prosecutor, Pirojpur is directed not to submit any petition for adjournment if any prosecution witness appears to give evidence.

Let copies of this order be sent to the Registrar General, Supreme Court of Bangladesh, learned Session Judge, Pirojpur, Superintendant of Police, Pirojpur and Public Prosecutor, Pirojpur at once.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER